

TEACHER EDUCATION COOPERATION AGREEMENT

Between University of Mount Union
And
Brecksville-Broadview Heights City School District

This Teacher Education Cooperation Agreement ("Agreement" is made and entered into effective the 6th day of May 2024, between The University of Mount Union (hereinafter referred to as "UNIVERSITY") and Brecksville-Broadview Heights City Schools (hereinafter also referred to as "SCHOOLS") (UNIVERSITY and SCHOOLS jointly referred to as "PARTIES," and individually as "PARTY").

RECITALS

The PARTIES acknowledge that it would be in their mutual benefit and to the benefit of the community which they serve to join in mutual cooperation in order to promote and develop the highest possible standards of teacher education candidates now and in the future, to develop excellence in education, and to provide maximum utilization of community resources; and

The PARTIES further acknowledge that one way this objective can be accomplished is through a program of placing teacher education candidates into the classroom for the purpose of participating in preclinical and/or clinical practice (student teaching) and other field-based experiences as required by, but not necessarily limited to, the Standards for Universities or Universities Preparing Teachers, as promulgated by the State Board of Education ("PROGRAM").

I. Agreements of PARTIES

In order to accomplish the objectives set forth in the Recitals hereinabove, the PARTIES hereby agree as follows:

- A. Each of the PARTIES shall at all times retain its own autonomy as a separate institution. The services and duties to be performed by the UNIVERSITY and SCHOOLS shall be performed in the capacity as an independent contractor and not as an employee, agent, partner, joint venturer, or in any other capacity other than as an independent contractor of the other PARTY.
- B. The University agrees:
 - 1) Faculty members of UNIVERSITY who are responsible for teacher education candidates shall provide appropriate instruction and supervision in an effort to effect continuous growth on the part of the teacher education candidates and to help ensure that the candidates perform in a manner that is consistent with professional and ethical standards required of certificated/licensed teachers within the State of Ohio.

- 2) To provide students (“teacher education candidates”) for participation in the PROGRAM at SCHOOLS in such numbers and at such times as shall mutually be agreed upon between the PARTIES. The number of PROGRAM(S) to be undertaken pursuant to this agreement may be changed from time to time upon mutual consent of the PARTIES. The UNIVERSITY shall make teacher education candidates aware that the relationship created between the teacher education candidates and the SCHOOLS is only one of providing services pursuant to this agreement between UNIVERSITY and SCHOOLS and does not create an employer-employee relationship.
- 3) To provide the SCHOOL’S mentoring teachers with the materials and other information reasonably necessary to understand the UNIVERSITY’S guidelines for evaluating the teacher education candidates and the field experience program and the procedure for effecting mutually agreed-upon revisions to the PROGRAM.
- 4) To ensure that the mentoring teachers are provided guidelines mutually agreed upon between UNIVERSITY and SCHOOLS regarding the standards for candidate performance in specific areas including, but not limited to, classroom management, lesson planning, student evaluation, and the analytical and technical skills of teaching.
- 5) To ensure that the preclinical and clinical practice mentoring teachers cooperate with SCHOOLS in the providing of the opportunity for preclinical and clinical practice mentoring teachers to meet individually with UNIVERSITY PROGRAM supervisors.
- 6) To provide mentoring teachers with informational material relative to the field placement expectations.

C. SCHOOLS agrees:

- 1) To provide faculty on site to supervise the teacher education candidates.
- 2) To retain responsibility for all aspects of the instruction of the SCHOOLS’ students by the teacher education candidates and pursuant to this PROGRAM.
- 3) That the mentoring teacher(s) shall provide services, and assume the roles and responsibilities that are specified in the Handbook for Field Experience, Handbook for Clinical Practice, or Handbook for Preclinical Practice (supplied online) by the UNIVERSITY.

D. SCHOOLS and UNIVERSITY mutually agree:

- 1) Neither UNIVERSITY nor SCHOOLS shall discriminate against any teacher education candidate or other participant in the PROGRAM because of race, religion, sex, creed, age, national origin, ancestry, or handicap during the term of this Agreement.
- 2) Each of UNIVERSITY and SCHOOLS shall comply with all accreditation policies of the State of Ohio or any other applicable accreditation institution or organization.

- 3) To use best efforts to ensure that each teacher education candidate has an opportunity to participate in as broad of a variety of teacher experiences as can be reasonably provided by the SCHOOLS.
- 4) The instructional experience shall conform to the PROGRAM requirements as mutually agreed upon between UNIVERSITY and SCHOOLS and shall be conducted at the facility assigned by the SCHOOLS. The number of holidays and vacation days shall conform to the SCHOOLS' calendar.
- 5) UNIVERSITY and SCHOOLS shall, within a reasonable period of time in advance of the institution of such, advise each other of any anticipated changes in institutional policies and procedures that may affect the PROGRAM. If at any time during the term of this Agreement either PARTY determines that such proposed changes in institutional policies and procedures may negatively impact or threaten the continuation of the PROGRAM and this Agreement, that PARTY shall immediately notify the other PARTY of its position, and the PARTIES shall make every reasonable effort to arrive at an amicable agreement concerning such proposed changes.
- 6) From time to time, the PARTIES shall meet and review the Agreement and the PROGRAM to discuss any possible modifications that may be necessary to accommodate the reasonable requirements of either of the PARTIES, or which may improve the PROGRAM performance. It is understood and agreed, however, that this Agreement and the PROGRAM may not be amended or modified without the prior written approval of both PARTIES.
- 7) In the event that either PARTY believes that a teacher education candidate is not performing his/her assigned responsibilities pursuant to this Agreement, or believes that a mentoring teacher is not performing his/her assigned responsibilities pursuant to the PROGRAM, that PARTY shall notify the other, in writing, setting forth in detail the alleged failure of performance, and the PARTY being notified shall have a period of up to thirty (30) days within which to cure the alleged performance defect. In the event that the PARTY claiming a defect believes that the defect has not been reasonably cured within that 30-day period, the teacher education candidate, or the mentoring teacher, shall be removed from his/her position in the PROGRAM.

II. Term

- A. The term of this Agreement shall be for the 2024-27 SCHOOLS academic years. The PARTIES may renew this Agreement for additional periods upon mutual written agreement.
- B. Either PARTY may terminate this Agreement upon thirty- (30) days' written notice to the other PARTY. Provided further, however, that

with regard to any teacher education candidate participating in the PROGRAM at the time of the desired termination, that teacher education candidate shall be permitted to continue participating in the PROGRAM for the remainder of the academic semester or academic year as applicable.

III. Responsibility for Negligence

Each PARTY shall be responsible for personal injury, property damage or other loss, claim, or cause of action that arises out of the negligence of that PARTY or the negligence of that PARTY's employees, agents, or others for whom that PARTY is legally responsible or over whom that PARTY has responsibility of supervision and direction. SCHOOLS will provide participating teacher education candidates with immediate first aid for work-related injuries or illnesses, such as blood or body fluid exposure.

IV. Assignment

This Agreement may not be assigned without the prior written consent of either PARTY.

V. Governing Law

This Agreement shall be enforced and interpreted in accordance with the State of Ohio.

VI. Notice

Any notice required or permitted hereunder shall be sent by regular United States mail and shall be deemed given upon deposit thereof in the United States mail, bearing the following addresses:

To The UNIVERSITY:
University of Mount Union
1972 Clark Avenue
Alliance, Ohio 44601

To The SCHOOLS:
Brecksville-Broadview Heights City Schools
6638 Mill Road
Brecksville, OH 44141

VII. Nonexclusivity

This Agreement is nonexclusive. The PARTIES to this Agreement reserve the right to enter into similar Agreements with other institutions or PARTIES.

VIII. Headings

The headings used in this Agreement are inserted only for convenience of reference and in no way limit or define the terms hereof.

IX. Separability

If any of the provisions of the Agreement are found to be void or illegal for any reason, the remaining provisions of this provision shall continue in full force for the term of this Agreement.

X. Entire Agreement

This Agreement constitutes the entire Agreement between the PARTIES with regard to the subject matter contained herein.

IN WITNESS WHEREOF, the PARTIES have signed duplicate copies of this Agreement on the dates set forth next to their respective names.

Witness:

Brecksville-Broadview Heights City Schools

By: _____

Title: _____

Date: _____

Witness:

University of Mount Union

By: _____

Title: _____

Date: _____